

IOWA BOARD OF CHIROPRACTIC EXAMINERS

IN THE MATTER OF	:	
THE LICENSE OF	:	SETTLEMENT AGREEMENT
BORGE BAK, D.C.	:	

Pursuant to Iowa Code § 258A.3(2), the Iowa Board of Chiropractic Examiners and Borge Bak, D.C. enter into this Settlement Agreement in resolution of the Statement of Charges and Notice of Hearing dated June 7, 1990.

It is agreed:

1. Dr. Bak will voluntarily surrender his license to practice chiropractic in the State of Iowa.
2. Dr. Bak will not practice chiropractic in the State of Iowa.

Borge Bak
BORGE BAK, D.C.

F. Dow Bates DC
F. Dow Bates, D.C.
Chair, Board of Chiropractic
Examiners

July 18 1990
Date

August 4, 1990
Date

THE BOARD OF CHIROPRACTIC EXAMINERS

IN THE MATTER OF THE LICENSE OF	)	NOTICE OF HEARING
	)	AND
BORGE BAK, D.C.	)	STATEMENT OF CHARGES

TO: Borge Bak, D.C.
703 Lake St.,
Spirit Lake, Iowa 51360

You are notified that a disciplinary hearing has been scheduled concerning your license to practice as a chiropractor in the state of Iowa. The hearing will be held on Thursday, July 12, 1990, at 1:30 p.m., at the Lucas State Office Building, 5th Floor Conference Room, Room 2, East 12th and Walnut, Des Moines, Iowa.

You have the right to appear at the hearing and be heard. You may be represented by legal counsel. The authority for the hearing is §§ 258A.3(1)(e),(f); 258A.6, Code of Iowa; 645-40.21, Iowa Administrative Code.

The hearing will address whether disciplinary action should be taken against your license resulting from the alleged violation of the following Board rules:

645-IAC 40.24(12) Being guilty of a willful or repeated departure from, or the failure to conform to the chiropractic practice Acts or rules promulgated therein. An actual injury to a patient need not be established.

645-IAC 40.24(14) Willful or repeated violation of lawful rule or regulation promulgated by the board.

645-IAC 40.24(19) ...failure to submit the annual report of continuing education.

645-IAC 40.62(1) Each person licensed to practice chiropractic shall complete during the biennium ending in an odd-numbered year a minimum of 36 hours of continuing education.

These alleged violations arise from your continuing to practice chiropractic while failing to renew your license since July 1, 1984 and failing to submit sufficient continuing education reports since 1983.

The hearing will be presided over by the Board and assisted by an Administrative Law Judge from the Department of Inspections and Appeals.

You should notify the undersigned within ten days after receipt of this notice concerning whether you will be present at the hearing and state whether an adjustment of date of hearing is desired.

In the event of your failure to appear at the hearing, it will be conducted in your absence and a decision rendered.

The State of Iowa will be represented by Maureen McGuire, Assistant Attorney General. All copies of filings submitted to the Board shall also be sent to Ms. McGuire.

June 7, 1990
Date

Carl H. Lundahl D.C.
Carl H. Lundahl, D.C.
Chairperson
Iowa Board of Chiropractic Examiners
Lucas State Office Building
Des Moines, Iowa 50319-0075
515/281-4416

cc: Maureen McGuire
Assistant Attorney General
Hoover Building
Des Moines, Iowa 50319
515/281-6705